PROPOSED LAW: SEPARATE PLATFORMS OR A NON-MAINSTREAM SETTING - WITH PROTECTION AGAINST BLACKLISTING AND DISPROPORTIONATE CANCELLATION LINKED TO TRAUMA, ADDICTION OR MENTAL HEALTH.

Protection against blacklisting: The proposed Act would also protect eligible participants against discriminatory blacklisting, coordinated exclusion, and retaliation by dominant entities for lawful competition or good-faith complaints. It would provide confidential reporting, evidence-based investigation, independent appeals, and proportionate remedies, while preserving legitimate safety decisions, lawful editorial judgment, and due process. These are proposed protections, not a claim that any identified entity has blacklisted a particular person. The proposed Act would additionally protect against automatic or disproportionate long-term economic exclusion after an outburst where trauma, addiction, or a mental-health condition is relevant. It would require individualized, evidence-based review, appropriate accommodation where applicable, proportionate responses, and a meaningful route to reassessment or reinstatement. It would not excuse threats, violence, harassment, or other harmful conduct, compel public approval, or eliminate legitimate safety rules, lawful editorial judgment, or due process.

Members of Congress and state legislators: I propose the Fair Competition and Opportunity Access Act with two alternative routes: require separate, equally capable platforms reserved for lesser-known participants, OR require covered major platforms to provide a genuine non-mainstream setting. Either route must serve new voices, creators, independent businesses, emerging leaders, and other eligible participants. The reserved space would exclude mainstream coverage and mainstream advertising, and resist dominant commercial influence to the fullest extent legally permissible.

This is a request for binding legislation, not merely a voluntary promise to recommend newcomers. Under the integrated route, the platform would be required to offer the setting, while users would freely choose whether to activate it. Existing mainstream services and ordinary feeds could continue outside the reserved space. The law must define covered platforms, eligibility, financing, enforceable duties, appeals, and constitutional limits. A separate service should not be required where a legally sufficient integrated alternative fulfills the statutory objectives, unless lawmakers adopt complementary routes for a demonstrated reason.

This essay uses economic blockade to describe cumulative barriers to reaching customers, supporters, readers, listeners, and voters. It uses systemic oppression as a moral and policy argument about structures that can repeatedly restrict opportunity. These descriptions are not findings that every platform commits an unlawful monopoly, that every successful person abuses power, or that a coordinated conspiracy exists. Specific legal claims require specific evidence. The policy question is broader: whether public institutions should accept a system in which prior recognition so often becomes the price of future recognition.

The requested law would open additional routes into public life through independent alternatives or a protected setting within major platforms. The integrated option responds to the problem that a separate service may struggle to attract users. Neither option guarantees demand. Both require fair discovery, capable tools, eligibility safeguards, and protection against blacklisting, with independent review and legally sound enforcement.

Repetition as a condition of participation

When people say they are being required to talk and listen about the same people repeatedly, lawmakers should hear a complaint about practical pressure. There is no general legal command to watch celebrities, follow an incumbent, or buy from a dominant brand. Yet the experience of public attention can feel compulsory when familiar names occupy the spaces through which people obtain information, communicate, shop, and seek work. Leaving those spaces can also mean leaving potential customers, collaborators, or community discussion.

A new commentator may feel pressure to discuss an established politician instead of presenting an original proposal. A musician may believe that reactions to famous performers will attract more attention than original music. A local business may spend its limited resources trying to appear beside a national chain. These are illustrative mechanisms, not measured claims about every person or platform. They explain why the issue includes the subjects people feel able to discuss, as well as who appears in a recommendation feed.

The result can be a recurring bargain: speak about people who are already visible in order to become visible yourself. Even criticism can send more attention toward the same names. A public conversation organized around that bargain may have many contributors while remaining narrow in its subjects. Thousands of accounts can discuss the same ten people without creating ten thousand independent centers of attention.

Lawmakers should ask whether users can easily choose something else. Can they request unfamiliar candidates, locally owned firms, first-time authors, or community organizations they have never encountered? Can they reduce repetition without dismantling every useful feature of a service? Giving people effective discovery controls would turn this complaint into a practical design question. It would allow the public to demonstrate demand for alternatives instead of requiring officials to decide which voices deserve prominence.

What an economic blockade means here

A conventional blockade obstructs passage. The economic blockade described in this proposal obstructs passage from participation to opportunity. It can arise when discovery, credibility, advertising, audience relationships, and payments depend on channels that a newcomer cannot afford or meaningfully influence. A person may be inside the marketplace in a technical sense while remaining outside its effective circulation of customers and support.

Consider a hypothetical new business with a useful product. It can create a page at little cost, but visibility may require advertising. Advertising requires money; money requires sales; sales require visibility. An emerging leader can encounter a similar circle when invitations depend on an established audience and audience growth depends on invitations. These examples do not establish misconduct. They identify circular entry conditions that public policy should examine rather than dismiss as an individual failure to work hard enough.

The blockade may consist of several modest obstacles rather than one absolute prohibition. A difficult export process, an opaque ranking change, a high customer-acquisition cost, and an inability to contact consenting followers can combine into a serious barrier. Their cumulative effect matters. A policy review that examines each obstacle separately may miss the experience of the participant who must overcome all of them at once.

The term should remain disciplined. This essay does not equate a disappointing audience result with a military blockade, legal embargo, or unlawful group boycott. It asks lawmakers to investigate whether the practical routes to economic and civic participation are sufficiently open. Useful evidence would include entry costs, switching costs, promotion expenditures, discovery outcomes, and the experiences of people who attempted to enter and withdrew. Naming the barrier should lead to measurement and remedies, rather than substitute for them.

Systemic oppression, insider networks, and gatekeeping

Systemic oppression, as used here, describes a pattern in which institutional arrangements repeatedly place people with less existing power at a disadvantage. The claim concerns how opportunity is organized. It does not require an allegation that every employee intends harm, and it does not mean that every unequal result proves oppression. Lawmakers should examine persistent barriers, their causes, their distribution, and whether practical alternatives exist.

This distinction matters because a system can reward behavior that narrows opportunity even when individual participants follow its rules. A platform may optimize for predictable engagement. Advertisers may prefer recognizable names. Publishers may seek established audiences. Investors may favor demonstrated traction. Each choice may have a business rationale, yet their interaction can create a difficult question: where is the newcomer supposed to obtain the first meaningful opportunity?

The burden can be especially serious for people who cannot finance a long period of unpaid visibility-building. A parent working multiple jobs, a rural organizer, a person with a disability, or a small firm with little cash may have less room to absorb repeated failed attempts. This is a policy hypothesis requiring evidence about actual groups and conditions, not an assertion that all members experience the same barriers. It supports collecting information about time, money, accessibility, and geography rather than counting accounts alone.

Calling the structure oppressive is a demand for accountability about opportunity. It should not become a justification for harassing successful people or suppressing their speech. The constructive response is to distribute access to discovery more widely. A fair system should make it possible to participate without first obtaining permission from an established circle, and should provide reasons and review when publicly supported opportunities are denied.

Established participants may meet through professional events, partnerships, shared advisers, sponsorships, and personal friendships. Those connections can make reciprocal promotion easier. The concern is not friendship itself, but an insider network using access, referrals, invitations, distribution, or contracts to protect its members from competition. A newcomer perceived as a competitive threat may face closed opportunities even when the public would value the alternative. This is a mechanism lawmakers should investigate, not an allegation that every established person participates in such conduct.

Concrete questions include whether organizers require exclusivity, whether members pressure suppliers not to work with outsiders, whether competitors agree to deny access, and whether participants face retaliation for supporting a new entrant. Evidence could include messages, contractual terms, ownership records, decision timelines, and corroborated testimony. The FTC explains that certain concerted refusals to deal can violate antitrust law, depending on the facts. [12] Shared contacts, similar decisions, or simultaneous criticism alone do not establish an agreement. The remedy should target exclusionary conduct rather than criminalize social relationships.

Attention can reproduce its own advantages

An influential experiment by Matthew Salganik, Peter Dodds, and Duncan Watts examined an artificial music market with 14,341 participants. Showing participants information about earlier choices increased inequality and unpredictability of success. Quality still mattered, but it did not fully explain outcomes. The study provides evidence that social influence can affect the distribution of attention. It does not establish how any present platform ranks content, nor does it directly measure elections or small-business markets. [1]

The policy inference is that popularity should not automatically be treated as an independent measure of merit. A large audience may reflect excellent work, but also the cumulative effects of earlier exposure. Where discovery systems repeatedly consult signals produced by previous discovery, they may reinforce advantages that began for reasons other than superior value. Lawmakers should investigate the size of that effect in particular markets rather than assume that every ranking is either perfectly fair or deliberately corrupt.

A useful response would create opportunities for evaluation before familiarity determines the outcome. Designated discovery spaces could rotate eligible participants, offer user-selected categories, and test samples without prominently displaying popularity counts. A small-business directory might let shoppers compare products by features and price before showing brand recognition. A civic directory could let residents compare proposals by issue and jurisdiction while retaining clear authorship and accountability.

These designs would not prove that newcomers are better. They would make a fairer test possible. If users still prefer established participants after encountering credible alternatives, that preference should count. The objective is to give alternatives a meaningful encounter with the public. A system that never offers that encounter cannot confidently claim that the public has rejected them.

Evidence of concentration, with its limits

The United Kingdom Competition and Markets Authority reported in 2022 that more than 60 percent of music streams involved recordings by the top 0.4 percent of artists. It also estimated that around 12 million UK streams in 2021 could yield an artist approximately 12,000 pounds, a level reached by fewer than one percent of artists. These figures describe that market and period; they are not current US earnings estimates or evidence about all online activity. [2]

The same authority found benefits for consumers and concluded that the creator concerns it examined were not driven by recording-market concentration or significant excess profits available for redistribution. It declined a further market investigation. That finding must be included, because a proposal loses credibility if it cites concentration while concealing the regulator's explanation. The report still invited policymakers to consider wider measures concerning creators. [2]

The appropriate lesson is to separate questions. Are audiences concentrated? Are entry conditions unfair? Has a firm violated competition law? Would an alternative discovery service improve opportunity? Those questions can have different answers. A highly concentrated outcome can justify experiments in discovery without establishing unlawful conduct. Conversely, a service with many visible accounts might still impose exclusionary conditions on competing services or sellers.

For the broader proposal, Congress should commission comparable evidence across sectors rather than transplant music statistics into politics or commerce. Studies should distinguish paid exposure from unpaid recommendations and measure whether newcomers gain sustained customers or support. The purpose of the existing evidence is to show that attention can be highly unequal and that policy choices deserve examination. It is not a shortcut around the need to investigate each field on its own terms.

Recommendation systems and the repetition problem

YouTube states that its homepage recommendations primarily rely on watch history and that the video currently being watched is a main signal for suggestions about what to play next. It also describes user controls, including turning off and deleting watch history. Those disclosures help explain how earlier activity can shape later exposure. They do not prove that the service universally favors mainstream names or intentionally excludes newcomers. [3]

The broader policy concern is the relationship between convenience and discovery. A system that predicts what a person already recognizes may serve an immediate preference while failing to reveal an unfamiliar alternative. That is a possible tradeoff, not an inevitable result of personalization. Users should be able to decide how much continuity and novelty they want. A meaningful alternative would let them deliberately enter a space designed around unfamiliar participants.

Discovery controls should be specific enough to be useful. Options could include smaller-audience participants, first-time local candidates, independent shops, new organizations, and a limit on repeated appearances by the same account within a selected discovery session. These are proposed features for legally designated services and implementation pilots. They are not descriptions of current platform functions or claims that compulsory ranking mandates would automatically be constitutional.

Users also need explanations they can understand. An interface could disclose whether a result is sponsored, follows a selected topic, comes from a direct subscription, or appears because the service is testing unfamiliar material. The public should not need proprietary source code to understand the basic reason for a recommendation. The objective is informed choice: people should be able to seek established favorites and, when they choose, leave the cycle of repeated names without losing access to useful information.

Small businesses and the cost of being seen

For a small business, discovery can determine whether an otherwise useful product ever reaches a customer. A new firm may compete against businesses with advertising departments, national recognition, extensive reviews, and existing customer lists. Those advantages are not inherently wrongful. The policy concern arises when the practical methods of reaching buyers require resources that only established participants are likely to possess.

Consider a hypothetical neighborhood repair shop. Its owner may offer good work but lack time to produce daily promotional content, study advertising auctions, and manage several platforms. If public visibility depends heavily on those tasks, commercial success can partly turn on expertise unrelated to the service being sold. Consumers may also miss a nearby option that would have suited them. These possibilities warrant research into actual discovery costs, rather than an assumption that all small firms face the same conditions.

Treasury's 2025 small-business financing brief called for evaluating access gaps and examining more uniform disclosures to support comparison and competition. That work concerns finance rather than recommendation systems. Its relevance here is limited but useful: the ability to understand terms and compare alternatives is an established policy concern, and financial constraints can shape the choices available to a new enterprise. [4]

A commercial discovery pilot could support directories controlled by local cooperatives, libraries, or independent operators. Eligibility could consider ownership, revenue, employees, and affiliation rather than follower counts alone. Listings should disclose sponsorship and allow comparison by location, price, service, and accessibility. Existing consumer-protection rules should continue to apply. A small-business label must never become permission for misleading claims. The objective is a fair route to customer consideration, with the customer retaining the final decision.

Emerging leaders and community institutions

Leadership develops outside elections and entertainment. Residents organize neighborhood projects, build associations, start educational initiatives, create independent publications, and propose solutions to local problems. Their influence may begin with a small group rather than a recognized institution. A fair opportunity framework should include these forms of contribution instead of treating public attention as a prize reserved for celebrities, brands, and officeholders.

A community organizer should be able to describe a proposal without first translating it into commentary about a famous person. A new association should have a reasonable way to reach residents who might care about its work. A local expert should be discoverable because of relevant knowledge rather than only through institutional status. These are normative goals. Whether particular systems obstruct them, and how often, should be established through evidence from the affected communities.

Publicly supported directories could organize information around local needs: transportation, neighborhood improvements, arts, education, business development, or public services. Participants would identify themselves and disclose relevant affiliations, funding, and conflicts. Residents could select topics and locations. Rotating presentation could prevent early popularity from becoming permanent control over the most prominent positions. Moderation would address fraud and abuse through written standards and reviewable decisions.

The design must avoid creating a new official class of approved leaders. Government should not certify that an applicant's politics, personality, religion, or artistic style makes them worthy of influence. Where public support is involved, admission should rest on neutral, published conditions suited to the service. People must remain free to criticize the officials who fund it. An opportunity program that rewards loyalty to those already in power would reproduce the very structure this essay seeks to change.

Political discovery and democratic choice

The political version of the problem is especially serious. Voters may hear repeated discussion of a small number of national figures while knowing little about lesser-known candidates, local offices, or policy proposals. This essay does not supply a quantitative estimate of that pattern. It asks lawmakers to measure it, including differences among elections, communities, languages, and media services. Meaningful democratic choice requires opportunities to learn who is running and what each candidate proposes.

A candidate information service could use a different design from a commercial popularity feed. Residents could select the office and jurisdiction relevant to them. Eligible candidates could receive comparable profile fields, the same word limits, accessible formats, dated submissions, and links to official election information. Ordering could rotate or use a neutral rule. These features should help users compare candidates rather than encourage a government agency to promote favored personalities.

Broadcast law already contains a qualified equal-opportunities framework for candidate uses of broadcast stations, with specified news exemptions. That framework has a particular statutory scope. It should not be represented as a general equal-time entitlement across internet services. [5] Any new digital proposal requires its own constitutional and statutory analysis rather than an assumption that broadcast requirements automatically transfer online.

Political discovery also differs from a newcomer-only music service. Excluding established candidates from a government-supported voter guide could deprive voters of important information or favor challengers by design. A complete, neutral comparison service is therefore the better baseline for public support. Independent private groups can explore other editorial formats within applicable law. The public goal is informed choice across the relevant field, not an engineered election result.

Campaign finance and safeguards against favoritism

A political platform cannot assume that a free service is legally irrelevant because money never changes hands between the operator and a candidate. Federal campaign-finance rules address coordinated communications and circumstances in which spending becomes an in-kind contribution. The FEC describes a payment, content, and conduct framework, with exceptions and detailed conditions. Any candidate-related pilot must obtain a design-specific analysis; this essay does not resolve the status of a future service. [6]

For policy purposes, the safeguards should be clear before launch. A candidate directory should publish eligibility rules, allocation methods, sponsorship, and correction procedures. It should separate neutral election information from advertising and editorial endorsements. Officials should not direct visibility toward political allies or withhold it from critics. Administrative decisions should leave records that can be audited without exposing private user information.

The proposal should also distinguish public information from campaign assistance. A standardized guide covering an election is different in purpose from helping one candidate plan outreach, design a message, or target voters. Operational details matter. Coordination, commercial practices, applicable exemptions, election level, and funding arrangements may change the legal analysis. Congress should request expert review from relevant agencies and independent constitutional counsel rather than bury those questions in an implementation footnote.

Most importantly, new rules must not convert low recognition into an official endorsement of merit. Voters remain entitled to prefer an incumbent, a challenger, a large party, a small party, or no candidate. The government's role is to protect fair processes and lawful access to information. An emerging-opportunity agenda should be credible across political disagreement because its procedures remain fair when the next administration or a rival party controls the funding.

Monopoly law and a broader fairness agenda

The FTC explains that monopolization analysis concerns monopoly power and the conduct used to obtain or maintain it. Superior products, innovation, or business skill can lawfully produce a leading position; exclusionary conduct raises a different question. Popularity alone therefore does not establish an antitrust violation. Nor does the phrase mainstream market identify a legally defined relevant market without analysis of substitutes, competition, and other evidence. [7]

There is, however, a concrete reason to take gatekeeping seriously. The Department of Justice reported that a federal district court found Google unlawfully maintained monopoly power in general search and search text advertising in 2024, followed by a remedies decision in 2025. Those proceedings concern defined markets and conduct. They do not establish that YouTube's recommendation choices, Microsoft's Edge browser, every advertising service, or mainstream public figures have committed the same violation. [8]

The FTC also describes a concrete example of exclusion through business relationships: it found that Toys "R" Us organized a boycott by toy manufacturers against discount club stores, limiting their access to competing products. This historical example shows why supplier pressure and agreements deserve scrutiny; it does not establish comparable conduct by current public figures or platforms. [13]

Lawmakers should maintain two tracks. Enforcement agencies should investigate evidence of unlawful conduct under existing authority. Legislatures should separately consider whether lawful market outcomes still leave unmet public needs that can be addressed through new infrastructure, information, and opportunity programs. Conflating those tracks makes the cause easier to dismiss. Keeping them distinct allows action without requiring every excluded participant to prove a monopoly case first.

Investigations should focus on identifiable practices: restrictive agreements, discriminatory terms, obstruction of lawful switching, deceptive promotion, or retaliation supported by records. A bad outcome is a reason to ask questions, not a complete legal theory. The fairness agenda can be broader than antitrust while remaining evidence-based. It should defend the ability of independent services to compete and the ability of users to choose them, alongside remedies for any violations actually established.

Freedom of expression is part of the solution

An opportunity proposal must respect freedom of expression from the beginning. In Moody v. NetChoice, the Supreme Court explained the First Amendment significance of platforms' editorial choices in curated feeds, while vacating and remanding the facial challenges before it. That decision creates an important constraint on efforts to make government rebalance private expression. It does not permit this essay to declare every possible platform regulation valid or invalid. [9]

The requested law would require separate alternatives to be established. Independent services can adopt a clear emerging-participant mission, and users can choose to enter them. Public programs can explore neutral infrastructure and information services with carefully drawn funding conditions. Counsel should evaluate the particular program, including its purpose, selection criteria, discretion, and effects. Providing funding does not automatically eliminate constitutional concerns about coercion, viewpoint discrimination, or unconstitutional conditions.

Government should not order citizens to stop listening to established performers, require media to criticize particular politicians, or decide which beliefs count as sufficiently original. The requested freedom is the freedom to find more people and institutions. A person who wants familiar favorites should keep that choice. A person who wants unfamiliar alternatives should have usable routes to them. Both preferences belong in a plural public sphere.

This also answers a possible objection to the language of oppression. Describing a structure as oppressive cannot authorize officials to suppress those who benefit from it. Remedies must be connected to demonstrated barriers and designed to expand liberty. The proposal will succeed only if its supporters are willing to protect fair procedures for people they dislike. Otherwise, a program intended to open public attention could become another instrument for controlling it.

A proposed Fair Competition and Opportunity Access Act

Congress should consider a Fair Competition and Opportunity Access Act. This is a proposed title and legislative framework, not the name of an enacted law. Its findings should describe the need to study barriers to discovery across economic and civic life, distinguish those barriers from established legal violations, and identify consumer choice, small-enterprise entry, independent cultural production, and accessible public information as public interests.

The first component would authorize a time-limited study of discovery and market entry. The second would establish competitively awarded pilots for independent discovery services and shared technical infrastructure. The third would support clear sponsorship disclosures and research into effective user controls. The fourth would require evaluation, accessible participation, privacy protections, conflict disclosure, and publication of aggregate results. Candidate-information projects would follow a separate legal and operational framework.

No appropriation figure is asserted here. Before legislation moves, Congress should obtain cost estimates and define the size, duration, responsible agencies, and statutory authority of each program. Funding should be competitive, limited, and reviewable. Awards should not be tied to a participant's support for an official, party, policy position, religion, or personal relationship. Small operators need an application process they can actually complete, with assistance that does not depend on expensive consultants.

The bill should require a public account of what worked and what failed. If pilots merely attract people who already know one another, they have not solved discovery. If grants produce a few new gatekeepers with opaque rules, they have reproduced the problem. A sunset and independent review would allow Congress to revise or discontinue ineffective programs. The legislative objective should be an expanding range of viable routes into public life, supported by evidence rather than perpetual funding by habit.

Eligibility, graduation, and preventing capture

An emerging-participant space needs rules that correspond to its purpose. A single view threshold cannot work equally well for musicians, local shops, nonprofit organizations, and candidates. Eligibility should therefore be sector-specific and tested in pilots. Relevant measures may include sustained audience size, business revenue, ownership, professional backing, organizational age, or access to substantial promotion. Any numerical limits should be published as proposed program choices, not presented as scientifically settled boundaries.

Ownership matters because a small account can be controlled by a large company. An established enterprise could otherwise create nominally independent brands and occupy a space intended for newcomers. Programs should require proportionate disclosure of controlling interests and significant promotional relationships. Audits should investigate evasion without assuming that a collaboration or modest investment automatically disqualifies someone. People need clear examples, notice, and an appeal route.

Success should trigger a transition rather than punishment. A creator or business that grows beyond the threshold could receive a defined graduation period, retain lawful access to its records, and invite consenting followers to continue the relationship elsewhere. The reserved discovery benefit would end under the published rules. A brief surge should not necessarily force immediate removal; rolling measurements can reduce that risk. The program should help people build independence rather than make them afraid to grow.

Political services need different criteria. A public voter guide should generally seek complete coverage of the relevant eligible candidates rather than restrict admission according to fame. Community-leadership directories should avoid subjective official judgments about whether someone is sufficiently important. The overall principle remains consistent: eligibility rules should serve a legitimate, defined purpose and prevent capture, while leaving participants free to succeed, criticize the system, and seek opportunities beyond it.

Paid promotion, deception, and authentic discovery

People cannot make informed choices if paid placement looks like an independent judgment of merit. The FTC's 2022 dark-patterns report describes practices that impair consumer choice, including advertisements disguised as independent content. That evidence supports taking disclosure and interface design seriously. It does not establish that all recommendations are advertisements or that every commercial ranking is deceptive. [10]

An emerging-opportunity service should disclose sponsorship where users encounter the promoted item. A separate policy page is insufficient if the result itself appears to be an unpaid recommendation. Operators should identify who paid, what benefit was purchased, and whether payment affected placement. Where a pilot promises unpaid rotating discovery, it should not quietly sell the most valuable positions. A newcomer space dominated by the biggest promotional budget would defeat its own purpose.

Authenticity also requires protection against manufactured popularity. Purchased views, coordinated fake accounts, fabricated reviews, and concealed ownership can undermine eligibility and trust. Verification should be proportionate to the activity and provide alternatives for people without conventional business credentials. A sole proprietor should not face the same paperwork as a complex corporate group. At the same time, a program should not allow a major organization to conceal its control behind an individual profile.

Enforcement needs explanation and appeal. Automated fraud systems can make mistakes, and a false accusation can damage a small participant who lacks legal resources. Operators should preserve relevant records, provide a usable correction process, and separate suspicious activity from proven misconduct. Discovery must also remain safe for the public. Fraud, impersonation, illegal products, and threats do not become acceptable because their source is small. Fair opportunity depends on trust, truthful presentation, and proportionate rules that apply consistently.

Portability, independence, and practical access

A discovery opportunity becomes more valuable when it helps a participant build a durable relationship with willing supporters. A business should not have to rebuild its identity from nothing whenever it changes services. A creator should be able to preserve original work and useful records. A community organization should be able to tell consenting members where to find it. These are proposed design goals, subject to privacy, intellectual-property, security, and applicable legal limits.

Portability must not mean exporting other people's private information without permission. Pilots could support structured exports of a participant's own content, public profile information, transaction records where lawful, and consent-based contact relationships. Users should receive clear choices about subscriptions and transfers. Interoperability proposals need technical and competition analysis, including their costs for small services and their vulnerability to spam or impersonation. An open door needs a workable lock against abuse.

Access also includes disability, language, device quality, and connection speed. A directory that works only on a new phone or requires a video introduction may exclude capable participants. Text alternatives, readable layouts, captions, keyboard access, and low-bandwidth pages should be part of pilot requirements. These are practical service goals; the precise legal accessibility obligations should be assessed for the operator and context rather than assumed identical across every project.

The long-term objective is independence. A publicly supported service should not become the only acceptable route to customers or civic participation. It should help people establish multiple lawful connections and reduce dependence on any single intermediary, including itself. Programs should be judged partly by whether participants can leave successfully. Otherwise, a reform presented as liberation from gatekeeping may simply move the gate to a new organization.

Measuring opportunity and confronting objections

The central objection is reasonable: people often prefer familiar names, and attention is limited. A new platform cannot create unlimited time or guarantee that the public will like every participant. This proposal accepts those limits. It asks whether people can encounter credible alternatives and choose among them. A fair opportunity to be evaluated differs from a promise of equal income, equal votes, or equal popularity.

Evaluation should measure more than registrations and total impressions. Relevant outcomes include exposure to previously unfamiliar participants, repeat engagement, customer conversion where appropriate, participant retention, cost per useful connection, complaints, and the distribution of benefits. Political-information services should measure comprehension and coverage rather than success for a party or candidate. Researchers should distinguish temporary publicity from relationships that continue after grant support ends.

Pilots should establish baseline conditions, document eligibility, and use suitable comparison methods. Some designs may permit randomized invitations or phased rollout; others may require matched comparisons or qualitative research. Privacy protections and voluntary participation remain necessary. Results should report uncertainty and differences across sectors. A successful arts directory does not by itself prove that the same design will improve voter information or local commerce.

Other objections concern cost, capture, and low-quality participation. They justify narrow pilots, published selection rules, independent review, and enforceable standards. They do not justify assuming that existing arrangements are the only workable ones. Congress should also examine unintended effects: new paperwork, strategic account-splitting, reduced useful recommendations, or funds disproportionately reaching well-connected applicants. The best defense of the cause is a willingness to correct its own program when evidence shows failure. Fairness requires accountability from reformers as well as incumbents.

The legislative request: open more doors

Lawmakers should hold hearings on access to discovery across culture, business, and civic life. Witnesses should include people who attempted entry and withdrew, alongside successful newcomers, established participants, platform operators, researchers, consumer advocates, accessibility specialists, and constitutional experts. Hearing only from visible success stories risks missing the barriers faced by those who never reached the committee's attention. Testimony should be tested against records wherever possible.

The committees should request sector-specific evidence, commission costed pilot options, and examine whether existing enforcement can address documented misconduct. Congress should then consider legislation that supports independent discovery infrastructure, transparent sponsorship, accessible participation, and durable relationships with consenting audiences. Election-related services require separate safeguards and expert review. The bill should state clearly that it neither guarantees popularity nor authorizes government viewpoint favoritism.

There is a wider cultural reason to act. UNESCO's 2005 Convention identifies equitable access to diverse cultural expression and the means of dissemination as important principles. That instrument is cited here as an international policy perspective, not as a source of a US cause of action or an assertion of binding US obligations. [11] The domestic argument stands on its own: a society benefits when people can encounter contributions beyond those already established.

The public should not have to spend its entire conversation circling the same people, companies, and institutions. Emerging participants should not have to borrow the names of the powerful merely to make their own existence visible. Economic blockade and systemic oppression are the terms this essay uses to challenge structures that repeatedly narrow that possibility. The requested response is concrete: investigate the barriers, enforce the law where violations are proved, fund carefully designed alternatives, and let the public choose among a wider range of people, products, and ideas.

The central requested obligation is a meaningful reserved discovery space through either separate equally capable platforms OR a required non-mainstream setting on covered major platforms. Within that space, mainstream coverage and advertising would be excluded as far as law permits. Infrastructure funding is an implementation tool, not a substitute for the obligation. Government-compelled editorial changes require careful constitutional review; user choice alone does not settle that issue.

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[11] UNESCO (2005). Convention on the Protection and Promotion of the Diversity of Cultural Expressions, especially Article 2. Policy comparison; no US legal obligation asserted. https://www.unesco.org/en/legal-affairs/convention-protection-and-promotion-diversity-cultural-expressions

[12] Federal Trade Commission. Group Boycotts. Guidance on concerted refusals to deal; applicability depends on facts. https://www.ftc.gov/advice-guidance/competition-guidance/guide-antitrust-laws/dealings-competitors/group-boycotts

[13] Federal Trade Commission (May 2014). From the antitrust mailbag: refusals to deal. Historical Toys "R" Us example; the article also notes later modification of restrictions as its market power changed. https://www.ftc.gov/enforcement/competition-matters/2014/05/antitrust-mailbag-refusals-deal

Industry relationships and coordinated exclusion

Members of Congress: I ask you to investigate whether industry relationships sometimes become channels for excluding people from economic opportunity because they are disliked, stigmatized, or considered inconvenient. A referral network can help people find work; the same kind of network could also circulate an unsupported warning that discourages several businesses from considering an applicant or supplier. This is a risk requiring evidence, not a claim that a particular network has targeted the author.

The FTC distinguishes a business acting independently from competitors agreeing to refuse dealings with a target. Certain coordinated refusals can violate antitrust law, depending on the conduct and competitive circumstances. Industry relationships alone do not establish such an agreement. Similar decisions can also result from separate judgments, shared public information, or lawful standards. [A1]

The legislative concern should therefore be framed precisely: investigate documented exclusionary agreements, discriminatory referrals, and pressure on business partners where credible evidence exists. Relevant evidence could include communications directing others not to work with someone, shared exclusion lists, inconsistent explanations, or contracts conditioning access on exclusion. None is established merely because a person experiences repeated rejection.

An individual decision can have consequences far beyond one transaction if other gatekeepers adopt it without independent review. Congress should ask how allegations are checked, whether affected people can correct factual errors, and whether receiving organizations distinguish verified conduct from rumor. Fair competition requires scrutiny of exclusionary practices as well as support for additional institutions.

Mental-health stigma can become an economic barrier

A mental-health condition should not become a permanent economic identity that overrides demonstrated ability. A person may have experienced distress, a period away from work, or an outburst related to symptoms. The policy concern is whether later decision-makers evaluate present qualifications or simply inherit a stigmatizing account of that earlier period. This hypothetical illustrates the requested investigation; it does not diagnose any event or prove discrimination in an individual case.

There is empirical evidence that disclosure can affect opportunity. In a Norwegian field experiment, Vegar Bjornshagen sent 1,398 paired applications to 699 employers. Equally qualified applicants disclosing mental-health problems to explain a previous employment break had approximately 27 percent lower probability of an interview invitation and 22 percent lower probability of any positive response. These are relative differences in that study, not percentage-point estimates or measurements of every country or industry. [A2]

The finding supports serious attention to stigma without proving an industry-wide agreement. Discrimination can arise through separate biased decisions as well as coordinated action. Remedies must distinguish those mechanisms: better hiring practices and enforcement may address one, while investigating an exclusionary agreement may address another.

Congress should examine how disclosed diagnoses, gaps in employment, and informal reputation judgments affect access to work and business opportunities. People should be assessed on relevant evidence and current capacity. The broader policy applies to workers, small-business owners, creators, and emerging community leaders, although the legal protections governing each setting differ.

An outburst should not automatically become a lifetime sentence

The example lawmakers should consider is a person whose symptoms contributed to an outburst, followed by years of exclusion based on a fixed reputation. An episode may warrant a proportionate response, but it should not automatically define every future economic decision. Policymakers should ask whether decision-makers consider context, elapsed time, later conduct, present ability, and measures that could prevent recurrence.

EEOC guidance explains that covered employers may not substitute mental-health stereotypes for objective assessment. Qualified applicants and employees may have accommodation and confidentiality rights. Employment protections, however, do not automatically apply to every platform account, independent contract, endorsement, or political opportunity. Whether a particular relationship is covered requires its own legal analysis. [A3]

The same agency also explains that disability law generally allows appropriate performance and conduct requirements applied consistently. A condition does not automatically excuse threats, harassment, or other misconduct, and accommodation does not invariably require erasing earlier discipline. The relevant question is whether the standard and response are lawful and whether prospective accommodation is required in the circumstances. [A4]

The reform I request is a meaningful route to reassessment. Supported programs could adopt published reinstatement criteria, reasons for decisions, proportionate restrictions, independent appeals, and periodic review where appropriate. These safeguards should protect others while preventing a temporary difficulty or unverified allegation from becoming an indefinite barrier to lawful economic participation.

Hidden screening, privacy, and practical safeguards

Exclusion need not involve a private agreement to deserve attention. A screening tool can repeat a biased judgment across many employers, creating similar outcomes without coordinated intent. Justice Department guidance warns that hiring technologies can unlawfully screen out qualified people with disabilities and that using an outside vendor does not remove the employer’s responsibilities. This does not establish that any particular reputation system exists or has targeted an individual. [A5]

Congress should examine whether tools measure job-relevant abilities or proxies for disability, whether human review can correct errors, and whether applicants can request an accessible assessment. It should also study the use of stale online material and third-party reputation information, with protections against unnecessary collection or circulation of medical details. These are proposed areas for oversight, not claims that every practice is already prohibited.

Additional safeguards should include a channel for reporting suspected discrimination without automatic loss of eligibility, confidential handling of sensitive complaints, and a documented process for correcting materially false information. Any investigation should protect lawful criticism, legitimate safety reporting, editorial independence, and the rights of people who experienced harmful conduct.

The economic costs to investigate include lost opportunities to earn, develop skills, obtain references, build customers, and establish independence. Their magnitude must be measured rather than assumed. I ask lawmakers to make disability inclusion part of competition policy: expand routes to market, investigate credible exclusion, evaluate present ability, and create fair opportunities to demonstrate growth.

Additional evidence and authorities

[A1] Federal Trade Commission. Group Boycotts. https://www.ftc.gov/advice-guidance/competition-guidance/guide-antitrust-laws/dealings-competitors/group-boycotts . Distinguishes independent business decisions from potentially unlawful concerted refusals.

[A2] Bjornshagen, V. (2021). The mark of mental health problems: A field experiment on hiring discrimination before and during COVID-19. Social Science & Medicine, 283, 114181. https://doi.org/10.1016/j.socscimed.2021.114181 ; abstract: https://pubmed.ncbi.nlm.nih.gov/34216884/ . Norwegian employment experiment; not evidence of a coordinated industry blacklist.

[A3] EEOC (2016). Depression, PTSD, & Other Mental Health Conditions in the Workplace: Your Legal Rights. https://www.eeoc.gov/laws/guidance/depression-ptsd-other-mental-health-conditions-workplace-your-legal-rights

[A4] EEOC (2008). Applying Performance and Conduct Standards to Employees with Disabilities. https://www.eeoc.gov/laws/guidance/applying-performance-and-conduct-standards-employees-disabilities

[A5] U.S. Department of Justice (2022). Algorithms, Artificial Intelligence, and Disability Discrimination in Hiring. https://www.ada.gov/resources/ai-guidance/

These sources support examining discrimination, exclusionary agreements, and screening practices. They do not establish that named platforms or industry figures coordinated to block the author or any identified individual. Agency guidance explains the agencies’ views; applicable statutes, facts, and judicial decisions determine individual legal outcomes. Proposed safeguards in this essay extend beyond a description of existing law.

Fair distribution requires an audience and a genuine first opportunity

Creating separate platforms is insufficient if audiences cannot find them. The integrated alternative would make non-mainstream discovery accessible where users already are. Both routes need clear navigation, useful content, accessible design, public awareness, and measured results. Users remain free to choose mainstream services, and no legal requirement can guarantee that a particular participant becomes popular.

Within designated platforms, eligible participants should receive a meaningful initial discovery opportunity among users who request relevant subjects. A pilot should publish how opportunities are allocated, rotate slots across participants, and limit excessive repetition in discovery areas. It should test whether people continue engaging after the introduction. Equal opportunity to be evaluated does not require identical sales, endorsements, votes, or permanent exposure.

Audits should measure exposure concentration, repeat engagement, useful customer connections, costs, and the experience of people with limited resources. Investigators should examine unexplained disparities while recognizing legitimate differences in relevance and demand. Rules should be revised when they reward low-quality engagement or merely reproduce existing fame.

Protecting newcomers from domination and institutional capture

Designated platforms should verify substantial ownership and control, disclose affiliated accounts, and prevent dominant interests from occupying newcomer spaces through subsidiaries, proxies, purchased accounts, or hidden sponsorship. Financial thresholds and audience measures should be published, sector-specific, proportionate, and appealable. Growth should trigger a fair transition rather than punishment.

No single sponsor should be allowed to purchase control over discovery or eligibility decisions. Supported operators should disclose major funding and conflicts, preserve discovery space that cannot be bought, separate paid advertising from ordinary recommendations, and give independent reviewers access to appropriate aggregate evidence. Ownership changes that jeopardize the mission should trigger review and enforceable funding conditions where lawful.

The Act should support several independent operators and require exit planning if a service closes. Its purpose should survive a management change. Otherwise, public money could build an audience only for an incumbent to acquire the service and redirect that audience toward established interests. Acquisition safeguards require careful drafting and should address control and competitive effects rather than assume every acquisition is harmful.

Target exclusionary conduct rather than success

Lawmakers should strengthen investigation of credible allegations that powerful participants pressure distributors, venues, suppliers, advertisers, or other partners to exclude new competitors. Priority should depend on evidence, market impact, and applicable law. A person becoming competitive should not itself be grounds to deny access; neither should an allegation of gatekeeping establish liability without investigation.

The FTC identifies group boycotts and exclusionary arrangements as potential competition concerns. Its exclusive-dealing guidance also explains that such contracts can produce benefits and are not automatically unlawful. The policy should examine whether arrangements substantially obstruct viable entry, what legitimate justifications exist, and whether less restrictive alternatives are practical. [B1] [B2]

Proposed safeguards include preserving relevant decision records, confidential reporting, reasoned responses, and protection against retaliation for good-faith complaints within supported programs. Remedies should be proportionate and independently reviewable. These proposals must preserve lawful editorial judgment, truthful criticism, legitimate safety decisions, and voluntary audience choice.

Enforcement should protect the competitive process across creators, independent businesses, and other economic participants. Civic and political programs need separate constitutional and election-law review. Commercial antitrust principles cannot simply be transferred to political association or used to require favorable coverage of a candidate.

Equal access to technology, skills, and independent review

Essential publishing, editing, captioning, translation, accessibility, and analytics tools should be available on affordable terms within supported services. Comparable participants should receive comparable access. Paid tiers must not make basic market entry impractical. Open formats, clear exports, consent-based audience portability, and transparent service fees would reduce dependence.

Technical availability is not practical access. Programs should provide mobile-friendly interfaces, low-bandwidth options, plain-language tutorials, human assistance, accessible assessments, and training suited to beginners. A newcomer should not need a consultant merely to understand eligibility or publish work. Assistance should be offered without requiring unnecessary disclosure of medical information.

Independent appeals should address account errors, hidden sponsorship, discriminatory treatment, and failures of eligibility verification. Decisions should identify the applicable rule and allow correction. Auditors should receive sufficient access to evaluate outcomes while protecting personal data, security, and legitimate confidential information. Public reports should reveal systemic problems without publishing individual viewing histories.

The proposal requests separate platforms OR a mandatory non-mainstream setting, together with viable audience access, capable tools, resistance to incumbent capture, and evidence-based action against exclusion. These are proposed duties, not current legal requirements. Public participation would remain voluntary; the duty to provide a legally valid option would fall on the entities specified by legislation.

Additional competition sources

[B1] FTC. Anticompetitive Practices. https://www.ftc.gov/enforcement/anticompetitive-practices . General competition-enforcement guidance; not proof that a named participant engaged in misconduct.

[B2] FTC. Exclusive Dealing or Requirements Contracts. https://www.ftc.gov/advice-guidance/competition-guidance/guide-antitrust-laws/dealings-supply-chain/exclusive-dealing-or-requirements-contracts . Explains potential efficiencies and exclusionary concerns. Applicability depends on facts and governing law.

The implementation safeguards in these added chapters are policy recommendations. No claim is made that a particular company has targeted the author, that all mainstream participants coordinate, or that a new platform can compel public demand. Success should be judged by meaningful, voluntary opportunity and a competitive process, with due process for people accused of misconduct.

The alternative: a required non-mainstream setting

Congress should consider requiring covered major platforms to offer a clearly labeled non-mainstream setting as an alternative to establishing separate services. This route addresses an important limitation of standalone platforms: people may never visit them. An integrated option gives users access to emerging participants inside services they already know, while preserving the ordinary experience outside that setting.

The proposed setting would reserve discovery and promotional space for eligible new voices, creators, businesses, and civic participants. It should not merely rename an existing feed while continuing to fill it with celebrities, dominant brands, or content centered on them. The exclusion concerns the reserved setting, not a general prohibition on mainstream people speaking or being covered elsewhere.

The operating duty would be mandatory if enacted in a legally valid form; audience use would be voluntary. A visible control could activate the mode, with a clear indicator and an equally straightforward way to leave it. Users should be able to retain their preference without hidden resets or repeated pressure to return to the ordinary feed.

Legislation must explain whether the two routes are alternatives for compliance or complementary programs. This proposal prefers meaningful access over formal box-checking: an operator should not be allowed to substitute an empty, unusable service for an effective mode. Any final architecture requires cost analysis, public consultation, and review of platform-specific functions.

Advertising, sponsorship and influence inside the setting

The objective is a reserved environment free of mainstream advertising, mainstream promotion, and dominant commercial influence as far as legally permissible. Advertisements, sponsored rankings, affiliate placements, brand-funded creator campaigns, and promoted reposts should be considered together. Otherwise a platform could exclude a celebrity account while reintroducing the same celebrity through paid placements.

Eligibility should follow substantial control and sponsorship, not just the name on an account. A dominant company should not qualify as an independent newcomer by creating a small subsidiary or financing a nominally independent account. Clear disclosure, proportionate verification, and appeals are necessary to distinguish concealed control from ordinary professional collaboration.

The phrase free of dominant interest needs a practical definition. A mode hosted by a mainstream platform necessarily uses that operator’s infrastructure. The proposal therefore seeks to prevent control of eligibility and discovery by mainstream advertisers, favored partners, hidden sponsors, or conflicting commercial incentives; it does not claim that the host can have no economic interest in running the service.

Funding options include an ad-free mode supported by the host, tightly limited eligible small-business advertising, or a separately administered public-interest program. Each has costs and tradeoffs. Paid placement must never quietly replace reserved discovery. Advertising exclusions and compelled separation of commercial functions require independent legal analysis rather than an assumption of validity.

Equally tech worthy means measurable functional access

The reserved setting should receive materially comparable reliability, accessibility, publishing capability, search, and basic analytics. A platform should not comply by placing newcomers in a slow, confusing, feature-poor corner. The goal is functional opportunity, not identical interfaces or access to every proprietary tool regardless of cost or purpose.

Essential editing, captions, translation, accessible uploads, and useful analytics should be affordable and available on comparable terms to similarly situated participants. Where AI tools are offered, eligibility and pricing should be transparent. Technical support, plain-language instructions, mobile access, and low-bandwidth options should make those capabilities useful to beginners.

Proposed service benchmarks could include uptime, upload success, load times, support response times, and accessibility testing. Differences should have documented technical or cost justifications rather than unexplained preference for mainstream accounts. Audit methods should protect security and confidential information while permitting meaningful independent evaluation.

The mode must also be discoverable. A clearly placed control, understandable onboarding, and persistent preferences can make it a real option. These are proposed design duties for legal review, not findings that existing platforms currently violate such duties. A separate platform should meet analogous standards through a sustainable operating plan.

Fair ranking without a new popularity monopoly

An emerging-only mode can still be dominated by a few eligible accounts. Transparent allocation of initial discovery opportunities, rotation across relevant participants, and limits on repetitive promotion can help. Continued exposure should consider user interest and satisfaction, with room to discover unfamiliar work. Fairness does not require equal sales, votes, or permanent ranking.

The proposal should define fair distribution as an opportunity to be meaningfully evaluated by a relevant, willing audience. Audits should examine exposure concentration, repeat engagement, hidden sponsorship, and whether modest budgets can obtain useful connections. Raw impressions or account registrations alone are inadequate measures.

Creators and businesses should have a way to appeal incorrect classification, undisclosed conflicts, and material ranking errors. Reviewers should provide reasons without requiring publication of complete algorithms or private audience data. Anti-fraud measures should address purchased followers, copied accounts, and manipulation while avoiding burdensome documentation for ordinary newcomers.

Growth should lead to a predictable graduation process. Existing links and archives may need transition rules, while reserved discovery space returns to eligible participants. Thresholds must distinguish media and sectors, account for substantial outside reach, and allow correction of mistaken identity. Political information requires separate, viewpoint-neutral standards and election-law review.

Legal limits, editorial freedom and enforceable alternatives

The integrated route raises significant First Amendment questions. In Moody v. NetChoice (2024), the Supreme Court explained constitutional protection for certain platform editorial choices and remanded the cases for proper facial-challenge analysis. A law compelling a curated setting or excluding specified subjects must confront that reasoning. The decision does not automatically validate or invalidate every possible user-control requirement. [C1]

User activation is relevant to the design but is not a constitutional shortcut. Mandatory provision of a setting can still affect the platform’s expressive decisions. Legislative counsel should analyze the particular platform functions, burdens, coverage thresholds, funding terms, commercial-speech issues, and less restrictive alternatives. Political coverage requires especially careful attention.

Where a broad mandate cannot lawfully operate, lawmakers should consider severable provisions supporting independent services, truthful disclosures, voluntary adoption, research, and valid competition or consumer-protection enforcement. Such fallback provisions should be identified candidly rather than presented as equivalent to the requested mandatory mode.

Legislation should specify who enforces each valid duty, what evidence is needed, how complaints are investigated, what remedies are available, and how decisions can be challenged. Independent audits should assess capability, access, advertiser influence, eligibility, and blacklisting protections. Accountability must preserve lawful moderation, safety reporting, privacy, due process, and audience choice.

Revised legislative request and authority

Members of Congress: I request hearings and legislative drafting on separate equally capable platforms OR a mandatory non-mainstream setting within covered major platforms. The reserved space should serve emerging people and independent enterprises, exclude mainstream coverage and advertising to the fullest lawful extent, and protect against domination, discriminatory blacklisting, and retaliation for legitimate competition.

The requested outcome is practical access: a setting people can find and choose, capable tools people can afford and understand, transparent participation rules, and evidence-based oversight. Please examine the integrated alternative alongside standalone services rather than assuming that creation of a separate website alone creates an audience.

[C1] Supreme Court of the United States. Moody v. NetChoice, LLC, 603 U.S. 707 (2024), decided July 1, 2024. https://www.supremecourt.gov/opinions/23pdf/22-277_d18f.pdf . Supports the limited discussion of protected editorial choices and the need for function-specific constitutional analysis; not authority that this proposal is constitutional.

The new mode, service standards, advertising restrictions, oversight mechanisms, and compliance alternatives described in these chapters are policy proposals, not existing entitlements or established empirical results. Existing references remain applicable to their original topics. No claim is made that every mainstream entity coordinates exclusion or that unfamiliar participants are entitled to success.

Outbursts, context and protection against disproportionate exclusion

Lawmakers should address the risk that a moment of distress becomes a permanent barrier to earning, publishing, or participating. Trauma, addiction, or a mental-health condition may be relevant to an outburst. Their presence should prompt careful assessment rather than an automatic assumption that a person is dangerous, incapable, or forever ineligible. The relationship between a condition and an event must be evaluated on evidence; it should not be presumed from a diagnosis.

The proposed protection concerns automatic, discriminatory, or disproportionate exclusion. It should distinguish criticism, a temporary restriction, loss of a particular opportunity, and coordinated denial of broad economic access. These are different actions with different legal implications. The term cancellation describes a social concern here; it is not a single established legal category or an entitlement to public approval.

Review should consider the conduct itself, its severity, context, elapsed time, later behavior, actual present risks, and feasible measures to prevent recurrence. A written explanation, a way to correct factual errors, a reasonable review interval, and independent appeal can make reassessment meaningful. Reinstatement need not restore every previous privilege or compel someone to enter a personal or commercial relationship.

For the proposed mode and supported services, lawmakers should examine clear reinstatement procedures, anti-retaliation rules for good-faith complaints, confidential handling of necessary evidence, and proportionate restrictions. People affected by harmful conduct must have a voice and protection from renewed harassment. Fair opportunity and accountability should be designed together.

Existing disability protections and the limits of the new proposal

EEOC guidance on performance and conduct standards explains that covered employers may apply lawful standards consistently and may in appropriate circumstances discipline disability-related misconduct. Prospective accommodation can help prevent future difficulties; disability does not automatically erase past discipline. The proposed safeguards should be drafted with these distinctions intact. [C2]

Justice Department guidance explains ADA protections for qualifying people in treatment or recovery from opioid use disorder who are not engaging in current illegal drug use, including people using prescribed treatment medication. That guidance does not mean every addiction-related behavior must be excused. Other conditions, settings, and legal relationships require their own analysis. [C3]

Trauma, addiction, and mental-health history should not be treated as interchangeable legal categories. Trauma may or may not involve a covered disability. Employment, platform access, business contracts, and political speech are governed by different rules. New protection against disproportionate economic exclusion would require explicit legislative drafting; it should not be portrayed as a universal right already supplied by the ADA.

[C2] EEOC. Applying Performance and Conduct Standards to Employees with Disabilities (2008). https://www.eeoc.gov/laws/guidance/applying-performance-and-conduct-standards-employees-disabilities . [C3] U.S. Department of Justice. The ADA and Opioid Use Disorder: Combating Discrimination Against People in Treatment or Recovery (2022). https://www.ada.gov/resources/opioid-use-disorder/ . These sources support the limited legal descriptions above, not a finding about any individual incident.